



Statement of Issues

13 March 2025

DP World Australia Limited's proposed acquisition of Silk Logistics Holdings Limited

Purpose

1. DP World Australia Limited (**DP World Australia**) proposes to acquire 100% of the ordinary shares in Silk Logistics Holdings Limited (**Silk**) by means of a scheme of arrangement (the **proposed acquisition**).
2. This Statement of Issues:
 - gives the Australian Competition and Consumer Commission's (**ACCC**) preliminary views on competition issues arising from the proposed acquisition,
 - identifies areas of further inquiry, and
 - invites interested parties to submit comments and information to assist the ACCC's assessment of the issues.
3. Statements of Issues do not refer to confidential information provided by the parties or other market participants and therefore may not fully articulate the ACCC's preliminary position.

Overview of ACCC's preliminary views

4. In considering the proposed acquisition, the ACCC applies the legal test set out in section 50 of the *Competition and Consumer Act 2010* (the **CCA**). In general terms, section 50 prohibits acquisitions that would have the effect, or be likely to have the effect, of substantially lessening competition in any market.
5. The ACCC divides its preliminary views into three categories, 'issues of concern', 'issues that may raise concerns' and 'issues unlikely to raise concerns'. In this Statement of Issues there are two 'issues of concern' and one 'issue that may raise concerns'.

Issues of concern

6. **Discrimination against rival container transport providers by increasing charges or worsening the quality of terminal services** – The ACCC’s preliminary view is that the proposed acquisition is likely to substantially lessen competition in the supply of container transport services by providing DP World Australia with the ability and incentive to increase charges and/or worsen the quality of terminal services provided to Silk’s rivals at each of the Ports of Melbourne, Botany (Sydney), Brisbane and Fremantle (together, the **Relevant Ports**). Foreclosing suppliers of container transport services is likely to result in higher prices or reduced service quality for cargo owners.
7. **Below-cost conditional discounts that have an exclusionary effect on rival container transport providers** – Post-acquisition, DP World Australia may have the ability and incentive to offer discounts that are conditional on the combined procurement of container transport services and stevedoring services by cargo owners and freight forwarders (as an ‘effective bundle’).¹ Such a discount is of concern if it amounts to a below-cost offer on the container transportation portion of the effective bundle. The ACCC’s preliminary view is that a below-cost conditional discounting strategy is likely to have the effect of foreclosing non-integrated rival container transport providers from competing effectively, enabling DP World Australia to raise prices above the competitive level once the competitive constraint provided by rival container transport providers has been removed.

Issue that may raise concerns

8. **Access to commercially sensitive information** – The ACCC understands that the proposed acquisition may provide Silk access to commercially sensitive information about its rivals’ operations and customers. The ACCC considers that information on cargo owners and freight forwarders, their volumes and delivery routes may provide a competitive advantage to target or undercut rival container transport providers. The ACCC is also considering whether the proposed acquisition may provide DP World Australia (and its indirect parent entity, DP World Limited) access to commercially sensitive information about Silk’s customers, some of which compete with DP World Limited as freight forwarders. In assessing these issues, the ACCC will have regard to whether access to commercially sensitive information may facilitate coordination between the merger parties and their rivals in the container supply chain.
9. The ACCC notes its assessment will consider the 3 issues as occurring independently and/or in combination with each other.

¹ The ACCC refers to this as an ‘effective bundle’ of container services provided by DP World Australia and Silk to cargo owners and freight forwarders. Bundling typically refers to conduct where two or more products are offered at a single price to a single customer. As stevedore terminal services and container transport services are offered to different parts of the supply chain (see Industry Background), cargo owners and freight forwarders are likely to be beneficiaries of an ‘effective bundle’ where discounts flow through to them by arranging for their containers to be processed at DP World Australia’s terminals.

Making a submission

10. The ACCC invites submissions from interested parties, particularly on the following key issues:
 - The extent to which DP World Australia would have the ability and incentive to foreclose rival container transport providers at any of the Relevant Ports, the practical ways this behaviour could occur, and the competitive and economic impact on rival container transport providers.
 - The ability and incentive for DP World Australia to offer below-cost conditional discounts to cargo owners and freight forwarders, and the competitive and economic impact on rival container transport providers.
 - DP World Australia and Silk's access to, and use of, commercially sensitive information and any subsequent competitive impact on participants in the container supply chain.
 - Whether the proposed acquisition would result in a loss of competition at any other level of the container supply chain.
11. Interested parties should provide submissions by 5pm on 27 March 2025. Responses may be emailed to mergers@accc.gov.au with the title: Submission re: DP World Australia's proposed acquisition of Silk Logistics.
12. The ACCC anticipates making a final decision on 5 June 2025, however, this timeline can change. To keep up with possible timing changes and to find relevant documents, interested parties should visit the Mergers Register on the ACCC's website at www.accc.gov.au/publicregisters/mergers-registers/public-informal-merger-reviews.

Confidentiality of submissions

13. The ACCC will not publish submissions regarding the proposed acquisition. The ACCC will not disclose submissions to third parties (except its advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the CCA. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, please identify any confidential information that is provided to the ACCC. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

About ACCC 'Statements of Issues'

14. A Statement of Issues is not a final decision about a proposed acquisition. A Statement of Issues outlines the ACCC's preliminary views and identifies further lines of inquiry.
15. A Statement of Issues provides an opportunity for all interested parties (including customers, competitors, shareholders and other stakeholders) to ascertain and consider the primary issues identified by the ACCC. It is also

intended to provide the merger parties and other interested parties with the basis for making further submissions should they consider it necessary.

The parties

DP World Australia

16. DP World Australia provides port and general logistics services. Its main business is the provision of container stevedoring services and operation of container terminals at each of the Ports of Melbourne, Botany (Sydney), Brisbane and Fremantle (as defined above, together the **Relevant Ports**).
17. In addition to its stevedoring services, DP World Australia:
 - a. operates an empty container park in each of the areas surrounding the Ports of Brisbane, Melbourne and Botany,
 - b. has a 50% interest in a vehicle booking system, OneStop (with Patrick Container Terminals owning the other 50%) that container transport providers use for the purpose of collecting/delivering containers at several Australian ports. At the Ports of Brisbane and Melbourne, DP World Australia currently uses a new OneStop booking system (*OptiBook*), and
 - c. operates a limited fleet of container transport trucks in Melbourne and Sydney. For the purposes of the Statement of Issues, and because each of DP World Australia and Silk only provide transport services for containers via road, container transport providers refer exclusively to road container transport providers (i.e. excluding rail transport).
18. DP World Australia is an indirect subsidiary of DP World Limited (**DPW**), Investcorp Corsair Infrastructure Partners and Caisse de depot et placement du Quebec. DPW holds the majority of voting rights in the subsidiary that owns DP World Australia. DPW provides freight forwarding and contract logistics services in Australia.

Silk

19. Silk is an ASX listed (**ASX:SLH**) port-to-door services provider offering warehousing, distribution and port logistics services. It operates 46 facilities across New South Wales, Victoria, Queensland, South Australia and Western Australia.
20. The ACCC understands that Silk is one of the only national door-to-door logistic providers in Australia.
21. Silk's operations are categorised into 2 divisions:
 - a. **port logistics**: road transport of import and export containers to and from ports in Australia, in addition to ancillary services (such as fumigation, quarantine inspection, packing/unpacking services). The ACCC

understands that in FY24, Silk transported approximately 332,000 containers between major Australian ports and various facilities², and

- b. **contract logistics:** warehousing and distribution services. Warehousing services relate to receiving containerised freight, unpacking it, palletising it, storing it and then packing and dispatching it to the final destination. Distribution services refer to the transportation of goods from warehouses to delivery points, such as retail premises, factories or households.

Industry background

Container logistics supply chain

22. The container logistics supply chain is comprised of:

- a. **cargo owners:** importers or exporters who contract directly with:
 - i. shipping lines for the transportation of containerised freight by sea vessel,
 - ii. container transport providers for the transportation of containerised freight from (to) ports to (from) a customer's selected destination, typically a warehouse for unpacking or packing freight, and
 - iii. other logistics services providers for ancillary services such as distribution, warehousing and container packing/unpacking,
- b. **freight forwarders:** act on behalf of cargo owners and contract directly with shipping lines, container transport providers and other logistics services providers,
- c. **container transport providers:**
 - i. road container transport providers: are contracted by cargo owners or freight forwarders to transport containerised freight by road between the cargo owners' place of business/packing location and the port.

Container transport providers pay fees to access and use a container stevedore's terminals, for the purpose of collecting or delivering containers to a port. These include booking and access fees, in addition to other discretionary fees charged by a container stevedore, such as late and early arrival fees.

Shipping lines also use container transport providers to collect empty containers from empty container parks and deliver them to export customers. Container transport providers pay access charges to collect or drop off empty containers at these parks,

- ii. rail container transport providers: cargo owners and freight forwarders may also elect to transport containerised freight by rail. If rail

² [Silk ASX Announcement \(23 December 2024\)](#), p. 114, accessed 5 March 2023

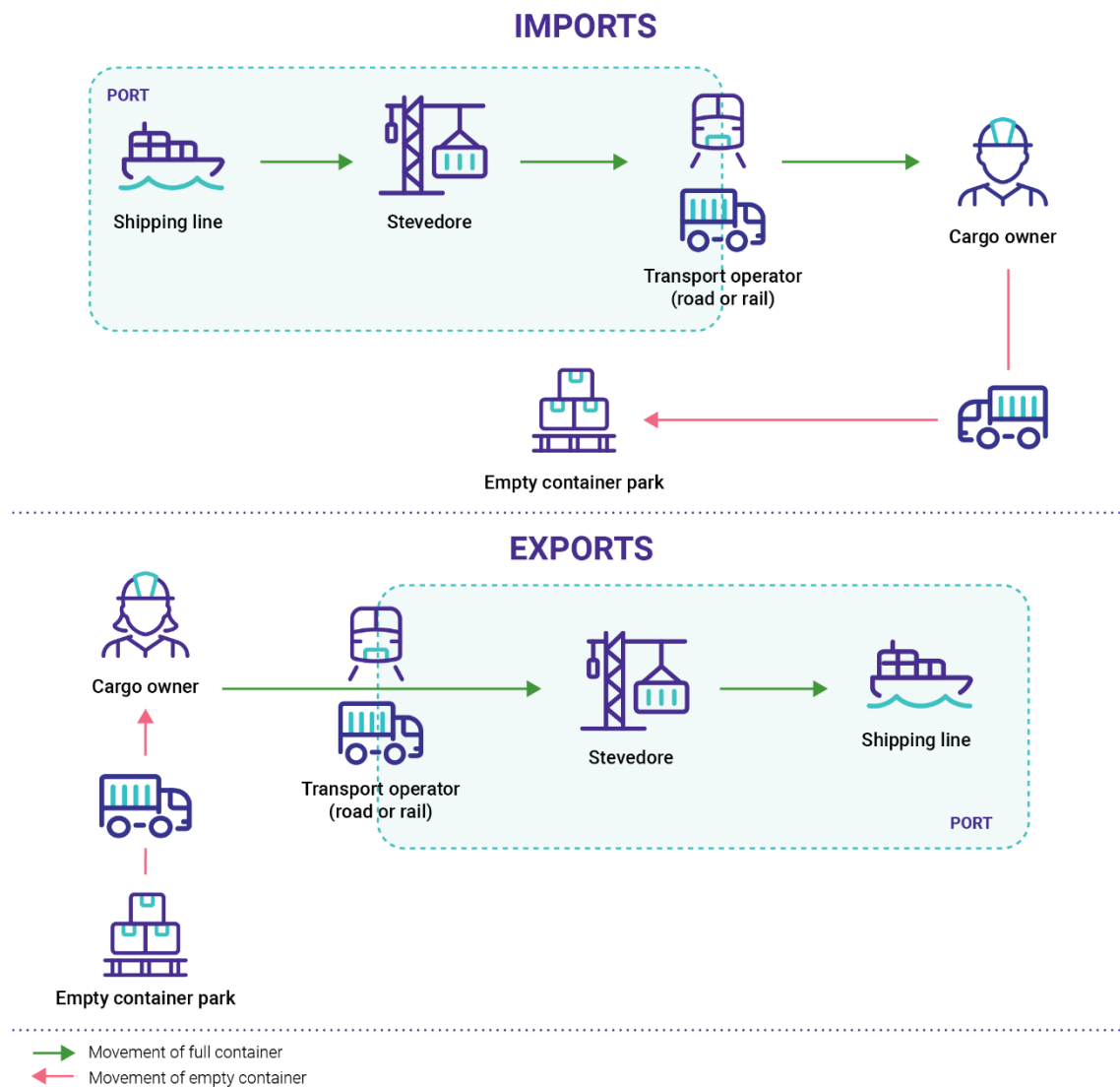
infrastructure is available, containerised freight may be transported either directly to the container terminal or utilising an intermodal freight solution. For the remainder of the Statement of Issues, container transport providers refer exclusively to providers who transport containers via road, and does not incorporate rail container transport providers,

- d. **container stevedores:** are responsible for lifting containers on and off container ships at a port. Container stevedores charge fees to shipping lines for loading and unloading their vessels and for storing containers, if longer than an initial free storage period. As discussed above, they also levy terminal access charges on container transport providers to book slots for container collections/drop offs via a vehicle booking system,
- e. **shipping lines:** are contracted by cargo owners and freight forwarders to transport their cargo in shipping containers. Shipping lines contract container stevedores to load and unload vessels, and empty container park operators to store empty containers (that are owned by the shipping line),
- f. **empty container park operators:** enter leases for land (with the relevant port authority if the park is located within the port precinct). They charge access fees to container transport providers to collect/drop off empty containers and charge storage fees to shipping lines for storing their empty containers. Empty container parks use vehicle booking systems, like OneStop, to coordinate the collection and drop off of containers. Cargo owners and freight forwarders choose which shipping line they will use, which in turn determines the empty container park they will use. The container transport provider is then required to go to the designated empty container park to pick up, or drop off, containers. The ACCC understands that there are numerous independent operators of empty container parks proximate to each of the Relevant Ports, and
- g. **vehicle booking systems:** online software tools that enable container transport providers to book a time to pick up or drop off a container at a terminal. Vehicle booking systems are also used to coordinate the collection and drop off of containers at empty container parks. Relevantly, OneStop, the vehicle booking system equally owned by DP World Australia and Patrick Container Terminals, is used at each of the Relevant Ports and empty container parks around Australia. The ACCC understands that pursuant to DP World Australia's National Terminal Carrier Access Terms and Conditions, all container transport providers must use OneStop to access DP World Australia's container terminals. These terms and conditions set out the access terms to DP World Australia's container terminals, and the requirements for a container to be able to be collected or delivered to a terminal. Specifically:
 - i. import containers are classified as 'ready' for collection when they have been unloaded from a ship at the terminal and are clear of all relevant industry impediments, and

- ii. for export containers, a container is accepted once the exporter enters the export declaration and the pre-receipt advice has been accepted at the terminal.

23. Below is a diagram summarising the movement of containers along the supply chain and the typical commercial relationships between key parties. The blue boxes refer to parts of the supply chain at the port precinct.

Figure 1: Container logistics supply chain



Source: ACCC container stevedoring monitoring report 2023-24: Figure 1.3.

Relevant Ports

Port of Melbourne

24. Port of Melbourne is Australia's largest container and general cargo port and handles all of Victoria's containerised freight. In FY24, the throughput at the Port of Melbourne was approximately 3 million twenty-foot equivalent units (TEUs).³ The Port of Melbourne is managed by a consortium of investors under a 50-year lease. There are three container stevedores based at the Port of Melbourne, which are DP World Australia, Patrick Container Terminals and the Victoria International Container Terminal (VICT).

Port Botany (Sydney)

25. Port Botany is the second largest container port in Australia and the largest in New South Wales. In FY24, the throughput at Port Botany was approximately 2.8 million TEUs.⁴ NSW Ports manages landside tenant leases and port infrastructure under a 99-year lease from the New South Wales Government. There are three container stevedores based at Port Botany which are DP World Australia, Patrick Container Terminals and Hutchison Ports Australia (Hutchison).

Port of Brisbane

26. Port of Brisbane is the third largest port in Australia and the largest in Queensland. In FY24, the throughput at the Port of Brisbane was approximately 1.7 million TEUs.⁵ The port is managed by a private consortium under a 99-year lease. There are three container stevedores based at the Port of Brisbane which are DP World Australia, Patrick Container Terminals and Hutchison.

Port of Fremantle

27. Port of Fremantle is the fourth largest container port in Australia and the largest in Western Australia. In FY24, the throughput at the Port of Fremantle was approximately 850,000 TEUs.⁶ The port is owned and managed by the Western Australian Government. Only DP World Australia and Patrick Container Terminals supply container stevedoring services at this port.

Access Regulation

28. Stevedore and landside logistics operators are regulated through a mix of national, state and industry regulatory frameworks.

³ [ACCC container stevedoring monitoring report 2023-24: Supplementary tables](#), accessed 4 March 2025

⁴ [ACCC container stevedoring monitoring report 2023-24: Supplementary tables](#), accessed 4 March 2025

⁵ [ACCC container stevedoring monitoring report 2023-24: Supplementary tables](#), accessed 4 March 2025

⁶ [ACCC container stevedoring monitoring report 2023-24: Supplementary tables](#), accessed 4 March 2025

Port specific regulatory frameworks

29. At Port Botany, the Port Botany Landside Operations Mandatory Standards⁷ regulate stevedore conduct. The mandatory standards require stevedores to make a minimum number of slots available to all container transport providers, to perform services within the applicable truck turnaround times and regulate conduct with respect to slot allocation.
30. At the Port of Melbourne, stevedore terminal access fees and performance are regulated under the Victorian Government's Voluntary Port Performance Model. The model is comprised of a Voluntary Pricing Protocol (**VPP**) which requires stevedores to provide advance notice and reasons for the increase or introduction of any pricing change. DP World Australia, Patrick Container Terminals and VICT have publicly expressed their commitment to follow the VPP and have been providing notices to industry in line with it.⁸ As part of the model, a Voluntary Performance Monitoring Framework has also been developed and landside supply chain performance is reported via the [Voluntary Performance Monitoring Framework Dashboard](#).
31. The ACCC is continuing to consider the extent to which regulations and DP World Australia's contracts/leases with the relevant port authorities may maintain non-discriminatory access for third party container transport providers to DP World Australia's container terminals post-acquisition.

National voluntary guidelines for landside stevedore charges

32. In addition to port specific regulatory frameworks, the National Transport Commission has developed a national voluntary guideline for terminal access fees (referred to as landside stevedore charges in the guidelines) (**NVG**). The NVG states that terminal access fees will only be changed once per year and requires stevedores to issue a Notice of Intention to the relevant authority (as well as publish it on their website) 60 calendar days before introducing or increasing its fees. Stevedores are also required to publish a Final Confirmation Notice of changes on their website 30 calendar days prior to the proposed date of implementation. The NVG is modelled on the Victorian VPP. The ACCC understands Victoria is continuing to apply its own VPP due to the consistency between the two guidelines and its additional information provisions.⁹

DP World's National Terminal Carrier Access Terms and Conditions

33. DP World Australia has also developed its own National Terminal Carrier Access Terms and Conditions which detail how a third-party container transport provider can access its container terminals. The ACCC is considering the effectiveness of these access terms as a form of self-regulation to prevent

⁷ Set by the New South Wales Minister under the authority of the Ports and Maritime Administrative Regulation 2021, Part 6.

⁸ State Government of Victoria, [Voluntary Pricing Protocol](#), accessed 12 March 2025.

⁹ State Government of Victoria, 'Voluntary Pricing Protocol' 2 December 2024, accessed 24 February 2025.

DP World Australia from discriminating against rival container transport providers post-acquisition.

ACCC's container stevedoring monitoring reports

34. The ACCC is responsible for monitoring the container stevedoring sector in Australia, with a focus on the degree of competition between container stevedores, whether the container stevedores' returns are indicative of excessive pricing, the level of investment by the container stevedores and other port operators, and the degree of productivity and efficiency at Australian container ports. The ACCC's monitoring program commenced in 1999, publishing annual reports that discuss the state of the industry.
35. The ACCC's most recent container stevedoring monitoring report (published in December 2024) outlined that container stevedores have significantly increased the terminal access fees to container transport providers. The ACCC also [reported](#) that there is limited competition between container stevedores in respect of these fees and that reforms may be necessary to improve efficiency in the supply of container stevedoring and empty container park services.

The proposed transaction

36. DP World Australia proposes to acquire 100% of the ordinary shares in Silk by means of a scheme of arrangement.
37. Pursuant to the proposed acquisition, Silk would be removed from the ASX and subsequently converted into a proprietary company limited by shares.

Future with and without the acquisition

38. In assessing a proposed acquisition under section 50 of the CCA, the ACCC considers the effects of the acquisition by comparing the likely future state of competition if the acquisition proceeds (the 'with' position) to the likely future state of competition if the acquisition does not proceed (the 'without' position) to determine whether the proposed acquisition is likely to substantially lessen competition in any relevant market.
39. The ACCC considers that the likely future competitive environment without the proposed acquisition would be the status quo. That is, Silk would continue to operate as a non-integrated container transport provider in the container supply chain.

Previous ACCC decisions

Consortium comprising Brookfield and Qube’s proposed acquisition of Asciano (not opposed)

40. On 21 July 2016, the ACCC decided not to oppose the acquisition of Asciano by a consortium comprising Brookfield (and certain of its affiliates), Qube and other investors. The proposed acquisition involved a complicated transaction structure in which different consortium members proposed to acquire different segments of the Asciano business.
41. Relevantly, Qube, Brookfield and three other Consortium members proposed to acquire Patrick Container Terminals from Asciano.¹⁰ At the time, Asciano held a 50 per cent interest in Australian Container Freight Services (**ACFS**) which, like Qube, supplied container transport services. In a Statement of Issues published in May 2016, the ACCC expressed a number of concerns with the proposed acquisition, including that the acquisition would align Patrick Container Terminals with Qube and ACFS, the two largest suppliers of container transport services in Australia.
42. The ACCC analysed whether this proposed acquisition would give Patrick Container Terminals, as a container stevedore, an increased ability and incentive to discriminate against Qube and ACFS’ rivals. In this respect, the ACCC noted that:
- a. container stevedores generally have the ability to influence the operations of, and competition between container transport providers. This could be done by offering preferential access to affiliated trucks or by charging rival container transport providers higher fees,
 - b. it is unclear whether container stevedores vertically integrated with a container transport provider have the incentive to discriminate against rival container transport providers. For example, the margin for container stevedoring services is higher than for container transport services. In the event that discriminatory conduct jeopardised a container stevedore’s throughput, this would reduce the incentive to discriminate, and
 - c. market feedback noted that discriminatory conduct would not necessarily jeopardise a container stevedore’s throughput (i.e. through a shipping line switching to a different container stevedore). Market participants noted that landside efficiency and equal treatment of container transport providers was only a secondary factor in a shipping lines’ choice of stevedore, behind pricing, berthing window availability and port-side efficiency. Therefore, if discrimination was to occur, it may not discourage shipping lines from continuing to use Patrick Container Terminals.
43. Following the publication of the Statement of issues, Asciano announced that its 50 per cent interest in ACFS would be sold to a separate third party. Consequently, the ACCC concluded that the partial vertical integration between

¹⁰ This excluded Asciano’s 50 per cent interest in ACFS Port Logistics Pty Ltd.

Patrick Container Terminals and Qube was not likely to substantially lessen competition for the following reasons:

- a. prior to the acquisition, Patrick Container Terminals was already vertically integrated (to a degree) with ACFS and as part of this transaction, ACFS's commercial relationship with Patrick Container Terminals would be replaced by Qube,
- b. Qube would have a 50% ownership interest in Patrick Container Terminals, with the remaining interests being owned by Brookfield. The ACCC considered that Brookfield's 50% interest in Patrick Container Terminals would limit Qube's ability to preference its container transport business as Brookfield might not consent to discriminatory conduct, and
- c. the ACCC considered that the vertical integration between major stevedores and container transport providers had not historically given rise to discriminatory conduct that damaged the viability of competitors.

Relevant areas of competition

44. The ACCC is considering the effect of the proposed acquisition in markets for the supply of:
 - a. container stevedore services at each of the Relevant Ports,
 - b. container transport services to and from each of the Relevant Ports,
 - c. empty container park services at or near each of the Ports of Melbourne, Botany and Brisbane, and
 - d. freight forwarding services for containerised freight to and from each of the Relevant Ports.

Issue of concern: Discrimination against rival container transport providers by increasing charges or worsening the quality of terminal services

45. The ACCC's preliminary view is that the proposed acquisition is likely to substantially lessen competition in the supply of container transport services by providing DP World Australia with the ability and incentive to foreclose rivals of Silk post-acquisition. The ACCC is concerned that such foreclosure could lessen competition, leading to higher prices or reduced service quality for cargo owners.
46. The ACCC is considering two mechanisms by which DP World Australia could increase charges or worsen services to rival container transport providers:
 - DP World Australia's container stevedoring business decreases the quality of terminal services or increases the charges at its container terminals for third party container transport providers, and/or

- DP World Australia’s empty container park business decreases the quality of services or increases the charges at its empty container parks for third party container transport providers.
47. Container transport providers utilise container stevedore terminals and empty container parks. In some circumstances, a container transport provider may be required to use both of DP World Australia’s empty container parks and its terminals. As a result, these two mechanisms could be conducted independently and/or in tandem.
48. The ACCC intends to examine the potential for DP World Australia to engage in both price and non-price discrimination. The extent to which DP World Australia can engage in non-price discrimination is of particular interest to the ACCC, as reliability and timeliness of delivery of cargo is an important consideration to cargo owners when selecting providers in the container supply chain. The ACCC notes that non-price discrimination could include a strategy of bundling container stevedoring and container transport services and simultaneously decreasing the quality of the service provided to rival container transport providers. An effective bundle of container stevedoring and container transport services could also include below-cost conditional discounts. This scenario is discussed below as an “issue of concern”.

Importance of DP World Australia’s terminals and empty container parks to container transport providers

49. Market feedback indicates that DP World Australia’s terminals at each of the Relevant Ports are critical to the import and export of containerised freight, providing stevedoring services for a significant volume of containers.
50. The ACCC understands that DP World Australia services approximately 35% of containers processed through the Relevant Ports (on average), although this share varies depending on the specific port, and is the second largest container stevedore in Australia (behind Patrick Container Terminals).¹¹ Consequently, access to its terminals appear to be key for container transport providers to provide services to their customers (cargo owners and freight forwarders). This is supported by findings of the Productivity Commission which, in January 2023, concluded that stevedores have exercised market power with respect to transport operators.
51. Container transport providers are directed by their customers (cargo owners and freight forwarders) as to which container stevedore terminal to access to pick up or drop off containers. Market feedback indicates that the decision about which container stevedore terminal is used is made directly by shipping lines in their contracts with container stevedores. However, cargo owners and freight forwarders may be able to indirectly choose a container stevedore terminal through their:

¹¹ [ACCC container stevedoring monitoring report 2023-24](#), p. 6, accessed 27 February 2025

- choice of contracted shipping lines,¹² or
 - influence over the terminal choice by contracted shipping lines.
52. As such, cargo owners and freight forwarders can have regard to the container stevedore when selecting a shipping line.
53. DP World Australia also operates empty container parks in the vicinity of the Ports of Melbourne, Botany and Brisbane. Like for container stevedoring, while shipping lines tend to contract with empty container parks, container transport providers must pay an access charge to enter and use an empty container park.

Ability to foreclose rival container transport providers

54. The ACCC is considering whether post-acquisition, DP World Australia is likely to have the ability to foreclose rival container transport providers. In assessing DP World Australia's ability to foreclose, the ACCC intends to examine:
- whether there are any practical constraints that would prevent DP World Australia from being able to engage in discriminatory conduct, including regulatory constraints and contractual arrangements with the relevant port authorities,
 - the extent to which cargo owners/freight forwarders would be inclined to process their containers at alternative container stevedores or empty container parks in response to discriminatory conduct by DP World Australia,
 - the extent to which cargo owners/freight forwarders are able to change container stevedores or empty container parks through their choice of, or influence over shipping lines, and
 - whether there are competitively effective and alternative container stevedores at each of the Relevant Ports, such that rival container stevedores could process the increased throughput if cargo owners/freight forwarders decided to switch.

Ability to foreclose access to DP World Australia's container terminals

Consideration of practical constraints that may prevent DP World Australia from being able to engage in discriminatory conduct

55. DP World Australia, along with Patrick Container Terminals, use (or will use) OptiBook, a new vehicle booking system within OneStop that is intended to provide transparent and timely terminal access to container transport providers. However, market feedback suggests that DP World Australia may be able to preference Silk outside the vehicle booking system by not using it or by

¹² Some shipping lines contract with multiple container stevedores at the same port. Therefore, in some circumstances, cargo owners/freight forwarders could indirectly switch containers stevedores without changing shipping lines, by utilising a different vessel service provided by the same shipping line.

using the vehicle booking system to benefit Silk. For example, market feedback indicates that DP World Australia has the ability to allocate slots to container transport providers based on schedules determined by DP World Australia.

56. DP World Australia also publishes its National Terminal Carrier Access Terms and Conditions. These are DP World Australia's public undertaking to the transport carrier industry, that specify the terms and conditions (including access fees) by which all container transport providers can access its terminals. The ACCC understands that DP World Australia has the ability to unilaterally amend these terms. Market feedback suggests that the terms are unlikely to restrict DP World's ability to increase charges and/or lower the quality of its terminal services to Silk's rivals. The ACCC intends to further investigate the effectiveness of the National Terminal Carrier Access Terms.
57. The ACCC is considering whether regulations and DP World Australia's contracts/leases with the relevant port authorities effectively restrict DP World Australia from engaging in discriminatory conduct. However, market feedback suggests that current regulations are unlikely to materially limit DP World Australia's ability to increase charges and/or lower the service quality at its terminals to rival container transport providers. We consider there is likely to be limited transparency where discriminatory conduct is subtle and/or involves non-price terms that may be difficult to readily detect.

The extent to which cargo owners/freight forwarders would be inclined to switch

58. In relation to cargo owners/freight forwarders, market feedback indicates that these parties primarily consider efficiency and cost in selecting a shipping line and container transport provider. If a cargo owner/freight forwarder is materially impacted by any change in cost or reduced efficiency associated with the transport of their cargo (through increased terminal fees charged to their transport provider or through delays in the transport of their cargo), this may encourage cargo owners/freight forwarders to indirectly switch container stevedores. As discussed above, this could be achieved by cargo owners/freight forwarders selecting a shipping line that calls at a different container stevedore terminal, or if possible, influencing the shipping line to choose a different terminal to call at.
59. The ACCC understands that cargo owners may not necessarily switch in response to container stevedores increasing their terminal charges. For example, container transport providers have faced sizeable and repeated increases in terminal fees by all container stevedores and at each of the Relevant Ports. The ACCC's 2023-2024 Container Stevedoring Report noted that there are limited examples of cargo owners switching in response to stevedores' increasing their charges to container transport providers. Importantly, however, these price increases were across all container stevedores. The ACCC intends to examine whether the switching behaviour of cargo owners/freight forwarders would differ when faced by a price increase at one container stevedore (i.e. DP World Australia).
60. The ACCC also intends to examine the importance of non-price factors to cargo owners/freight forwarders, including reliability and timeliness of transport/delivery of cargo, and the extent to which these factors would impact

the likelihood of a cargo owner/freight forwarder switching. In examining this issue, the ACCC will consider whether an effective bundle of container stevedore services and container transport services will impact a cargo owner or freight forwarder's decision to switch shipping lines to use DP World Australia's stevedore terminal.

The extent to which cargo owners/freight forwarders are able to switch

61. Cargo owners and freight forwarders may be restricted from switching if they are unable to find an economically competitive shipping line that uses a rival to DP World Australia's container stevedoring business. The ACCC is having regard to the contractual arrangements in the container supply chain, available shipping lines and the impact this has on the ability of cargo owners and freight forwarders to switch to different providers in the container supply chain. DP World Australia's existing relationships (including through its parent entity, DPW) and its supply of other container services to cargo owners and freight forwarders may also limit switching.

Whether there are competitively effective and alternative container stevedores to DP World Australia

62. The ACCC understands that container stevedores at the Relevant Ports have a degree of spare capacity. The ACCC intends to examine whether this spare capacity is sufficient such that cargo owners/freight forwarders are able to utilise different container stevedores in response to DP World Australia engaging in discriminatory conduct, or whether only a portion of cargo owners/freight forwarders would be able to effectively switch.

Ability to foreclose rivals access to DP World Australia's empty container parks

63. The ACCC also intends to examine whether DP World Australia would have the ability to foreclose Silk's rivals at its empty container parks. As discussed above, DP World Australia operates one empty container park proximate to each of the Ports of Melbourne, Botany and Brisbane. The ACCC understands that access fees and conditions for container transport providers are determined by the park operator. The ACCC intends to examine whether there are regulations which would prevent DP World Australia from being able to increase charges or worsen the service quality to Silk's rivals post-acquisition.
64. As for container stevedore services, shipping lines contract with empty container parks for the storage of their containers. Cargo owners/freight forwarders choose which shipping line they use, which in turn determines the empty container park they will direct container transport providers to access. Therefore, the ability of DP World Australia to discriminate against Silk's rivals at its empty container parks depends on whether cargo owners/freight forwarders would be able to indirectly switch container parks through their choice of shipping line.
65. The ACCC understands that there are multiple alternative empty container parks surrounding each of the Ports of Melbourne, Botany and Brisbane. These include empty container parks whose operators are vertically integrated with logistics and shipping line services suppliers, in addition to standalone operators.

66. While the ACCC understands that the provision of empty container park services is relatively more fragmented than container stevedoring services, the ACCC will give further consideration to the degree of concentration in the supply of empty container park services. The ACCC will explore the extent to which DP World Australia has the ability, post-acquisition, to foreclose Silk's rivals from its container terminals and jointly its empty container parks.

Incentive to foreclose rival container transport providers

Incentive to foreclose access to DP World Australia's container terminals

67. Market feedback suggests that DP World Australia may have the incentive to discriminate against Silk's rivals either now or in the future. Market participants indicate that such a strategy may adversely impact DP World Australia's profit (from its container stevedore service) in the short term through some terminal inefficiencies, but ultimately increase its integrated profit in the medium and long term through increasing Silk's market share and integrated container throughput.
68. The ACCC is considering the impact of any attempt to frustrate rival container transport providers on DP World Australia's quayside and landside terminal efficiency. A reduction in terminal efficiency could lead to increased labour costs or may materially impact DP World Australia's profit by causing shipping lines to switch to a rival container stevedore. The ACCC understands that container stevedoring operations have high fixed costs and higher relative margins than container transport services, and there may be an overriding incentive to increase terminal container throughput.
69. Moreover, DP World Australia's container stevedoring relies on shipping lines calling at their terminals, and efficiency is a relevant consideration for shipping lines when selecting a container stevedore. If a container stevedore's quayside efficiency is materially impacted by discriminating against rival container transport providers, this may encourage shipping lines to call at competing terminals, and therefore limit DP World Australia's incentive to engage in discriminatory conduct. Market feedback indicates that landside efficiency may be less important to shipping lines than other factors such as price and quayside efficiency.
70. In relation to the potential for DP World Australia to engage in discriminatory conduct by way of worsening the quality of terminal services to rival container transport providers, the ACCC intends to examine whether such conduct would reduce DP World Australia's quayside efficiency and therefore risk shipping lines calling at competing terminals.
71. In relation to the potential for DP World Australia to engage in discriminatory conduct by way of raising charges to rival container transport providers, the ACCC is considering whether DP World Australia is likely to have an increased incentive to do this. As noted above, cargo owners switching container stevedores (indirectly) may be limited in response to container stevedores raising charges imposed onto container transport providers.
72. The ACCC is considering the extent to which Silk would be able to increase its market share should DP World Australia engage in such a foreclosure strategy

(i.e. whether Silk is in a position to increase its capacity to service additional container volumes and service cargo owners/freight forwarders that divert from its rivals).

Incentive to foreclose access to DP World Australia's empty container parks

73. The ACCC is also considering whether DP World Australia would have an incentive to increase charges or worsen service quality at its empty container parks either alongside or independently of a strategy to foreclose Silk's rivals access to its container terminals.
74. Similar to the above, the ACCC considers that any forgone profits (from the loss of customers at DP World Australia's empty container parks and the competitive response of Silk's rivals) must be taken into account in assessing DP World Australia's likely incentives.

Competitive effect of discriminatory conduct

75. Market feedback indicates that the adoption of a foreclosure strategy by DP World Australia, such as differential pricing or non-price discrimination against rival container transport providers, would prevent rivals from being able to effectively compete against Silk at those terminals. Specifically, the ACCC heard that rivals would gradually lose business as freight forwarders and cargo owners switch to Silk, and third party transport operators would subsequently be forced to exit the market.

Questions for market participants

The ACCC invites comments from market participants on its concerns in relation to DP World Australia's ability and incentive to foreclose competing container transport providers, including on the following:

- The extent to which container stevedores' charges to container transport providers can influence a freight forwarder's/cargo owner's choice of container stevedore (via selecting a shipping line).
- What factors would influence DP World Australia's ability and/or incentive to foreclose rival container transport providers by, for example:

- increasing charges or worsening the quality of the services at DP World Australia's container terminals?

For example, the ACCC intends to examine whether such a foreclosure strategy would impact the efficiency of DP World Australia's container terminals. In your response, please set out in detail how the factors you have identified would influence DP World Australia's ability and/or incentive to foreclose rival container transport providers, and/or

- increasing charges or worsening the quality of the services at DP World Australia's empty container parks?

In your response, please set out in detail how the factors you have identified would influence DP World Australia's ability and/or incentive to foreclose rival container transport providers. In your response, please set out in detail how the factors you have identified would influence DP World Australia's ability and/or incentive to foreclose rival container transport providers.

- The extent to which existing regulation, access agreements or DP World Australia's contracts/lease arrangements with the Relevant Ports would limit DP World Australia's ability to engage in discriminatory conduct and foreclose rival container transport providers.
- Examples of potential conduct (subtle or otherwise) that DP World Australia could engage in to discriminate against rival container transport providers.
- The practical impact of the planned introduction of 'OptiBook' at DP World Australia's terminals, which offers real-time booking options on the ability of a stevedore to adopt discriminatory conduct.
- The likelihood of shipping lines switching container stevedores if DP World Australia was to foreclose rivals post-acquisition, including:
 - whether DP World Australia's quayside efficiency would be impacted if it worsened access terms and conditions for non-affiliated container transport providers, and
 - whether a container stevedores' quayside and landside efficiency are linked (and if not, why not).
- The options available to freight forwarders/cargo owners should DP World Australia discriminate against rival container transport providers post-acquisition, including:
 - whether freight forwarders/cargo owners would complain to or seek a resolution/redress via shipping lines,
 - whether freight forwarders/cargo owners would use an alternative shipping line that does not contract with DP World Australia for container stevedore services, and
 - any barriers (including the necessary time and costs) associated with a freight forwarder/cargo owner switching to different shipping lines and container transport providers.
- The pricing of Silk's container transport service offering in comparison to its rivals.
- How rival container transport providers would act in response to being charged higher access fees or receiving worse access conditions at DP World Australia's container terminals post-acquisition, including whether:

- this would jeopardise the commercial viability of the container transport provider, and
- the container transport provider could target freight forwarders/cargo owners that do not use DP World Australia as a container stevedore.

Issue of concern: Below-cost conditional discounts that have an exclusionary effect on rival container transport providers

76. Post-acquisition, DP World Australia may have the ability and incentive to offer discounts that are conditional on the combined procurement of Silk's container transport services and DP World Australia's stevedoring services by cargo owners and freight forwarders (as an 'effective bundle'). Such a discount is of concern if it amounts to a below-cost offer on the container transportation portion of the effective bundle.
77. The ACCC's preliminary view is that a below-cost conditional discounting strategy is likely to have the effect of foreclosing non-integrated rival container transport providers from competing effectively, enabling DP World Australia to raise prices above the competitive level once the competitive constraint provided by rival container transport providers has been removed. Specifically, this conduct would involve:
- a. DP World Australia offering a discount to cargo owners and freight forwarders on the combined procurement of Silk's container transport services and DP World Australia's stevedoring terminals, and
 - b. the discounted price being below an appropriate measure of Silk's costs to supply the related container transportation services.
78. The ACCC considers that while price discounts can be pro-competitive, below-cost conditional discounts can have the effect of substantially lessening competition. This may occur over the longer term if non-integrated rival container transport providers are unable to compete effectively and DP World Australia is then able to raise prices above prevailing levels once rival providers become less of a competitive constraint.
79. The ACCC's consideration includes whether, post-acquisition, DP World Australia could, in effect, cross-subsidise its downstream container transport service with profits from its upstream stevedoring service. Such cross-subsidisation is not available to non-integrated container transport service providers.
80. The ACCC notes that exclusionary conduct can also occur through strategic and discriminatory offers of non-price terms, such as improved stevedore reliability and priority access. These non-price terms cannot be matched by rival container transport providers. The ACCC is assessing the issue of conditional discounts in combination with the issue of concern related to worsening terminal quality, where non-price discrimination is a focus. As such, when referring to below-cost conditional discounts, the ACCC is also considering any inclusion of beneficial non-price terms.

DP World Australia's increased influence in the container supply chain

81. Market participants expressed concern that the proposed acquisition may be part of a broader DP World Australia strategy to influence and control more of the container supply chain. As part of this, market feedback indicates that DP World Australia may seek to bundle their services and offer anti-competitive discounts that influence cargo owners and freight forwarders to direct their containers to DP World Australia's terminal and use Silk's container transport services. Market participants were concerned that rival container transport providers would be unable to compete against discounted pricing offered by DP World Australia to cargo owners/freight forwarders, post-acquisition.
82. As noted above, DP World Australia does not sell stevedore terminal services directly to cargo owners and freight forwarders. As such, in order to sell an 'effective bundle' of container terminal and transport services to cargo owners and freight forwarders, the ACCC considers DP World Australia would need to:
- a. contract cargo owners or freight forwarders that already use shipping lines that call at DP World Australia's container terminals to use Silk's container transport services,
 - b. influence cargo owners or freight forwarders (including vertically integrated freight forwarders and shipping lines) to use shipping lines that call at DP World Australia's container terminals and contract cargo owners and freight forwarders to use Silk's container transport services, and/or
 - c. encourage DPW's freight forwarding arm to select shipping lines that call at DP World Australia's container terminals and use Silk's container transport services for their Australian customers.
83. The ACCC is considering whether the conduct and strategies outlined above are likely to be commercially practical and viable post-acquisition.
84. The ACCC acknowledges a discounted effective bundle offered by DP World Australia post-acquisition may reflect the elimination of double-marginalisation and/or other efficiency gains arising from the vertical integration of DP World Australia's terminal services and Silk's container transport services. Efficiency gains may arise from eliminating duplicate functions, better coordination and reduced transaction costs. These may lead to lower overall costs and improved quality in the supply of container transport services. The ACCC is considering the specific efficiency gains likely to result from the proposed acquisition. To this end, the ACCC is concerned that, post-acquisition, DP World Australia is likely to have an incentive to offer discounted prices for container transport services that cannot fully be justified by the elimination of double marginalisation and potential efficiency gains, resulting in a below-cost price and exclusionary effect on competing transport providers.

Ability to offer below-cost conditional discounts

85. The ACCC is considering DP World Australia's ability, post-acquisition, to engage in a foreclosure strategy that involves offering below-cost conditional discounts. This includes considering DP World Australia's ability to secure additional container transport capacity to handle container volumes diverted

from rival container transport providers. This capacity could come from Silk's existing capacity or from DP World Australia's ability to expand Silk's capacity after the proposed acquisition. The ACCC acknowledges that increasing capacity (e.g. trucks, yard space and stackers) poses practical challenges and requires corresponding financial resources. As a result, the ACCC proposes to evaluate the feasibility of offering below-cost conditional discounts based on whether DP World Australia can access sufficient transport capacity post-acquisition.

86. Silk contracts directly with cargo owners and freight forwarders. Post-acquisition, a combined DP World Australia and Silk does not appear to have any contractual restrictions on it offering a discounted effective bundle to cargo owners and freight forwarders.
87. In addition, the ACCC is also exploring whether DP World Australia can offer a discounted effective bundle directly to cargo owners via DPW's freight forwarding services. As a freight forwarder, DPW may be able to offer such a bundle to cargo owners on behalf of DP World Australia by packaging shipping lines that call at DP World Australia's terminals and Silk's container transport services.
88. The ACCC is considering whether there is any strong preference by cargo owners or freight forwarders for particular rival container transport providers that would constrain a discounted effective bundle from being effective in diverting significant container volume from rival providers.
89. While market feedback indicates that cargo owners and freight forwarders are price sensitive, suggesting that some may switch to DP World Australia's container transport services at its terminals, the ACCC also acknowledges that switching container transport services is not necessarily costless. Switching may come at the cost of forgoing economically preferred transport providers based on service quality and other non-price factors. Such preferences may mean limited diversion by cargo owners and freight forwarders from their preferred container transport provider(s) either at DP World Australia's terminals or via alternative terminals, in the event that the preferred provider exits from DP World Australia's terminals.

Incentive to offer below-cost conditional discounts

90. The ACCC is considering whether, post-acquisition, DP World Australia is likely to have the incentive to offer below-cost conditional discounts on its container transport services.
91. This consideration includes whether it would be profitable for DP World Australia to engage in this conduct which could have the effect of excluding rival container transport providers from effectively competing and subsequently enable DP World Australia/Silk it to raise its container transport prices above prevailing levels once rivals exit the Relevant Ports or are significantly weakened.
92. The ACCC considers the profitability of a below-cost conditional pricing strategy would likely depend on the:

- a. incremental profit DP World Australia may obtain from charging increased competitive transport price to cargo owners after rival providers have either lost competitive effectiveness or exited the Relevant Ports, and
 - b. the upfront loss DP World Australia sustained from offering below-cost transport.
- 93. Importantly, DP World Australia is likely to have the incentive to engage in below-cost conditional discounts if:
 - a. the incremental profit from charging a higher price at a later stage outweighs the upfront loss from offering below-cost conditional prices, and
 - b. the conduct will generate more profit for DP World Australia than the profit it would otherwise have derived in the absence of such conduct.
- 94. A below-cost conditional discount strategy is more likely to be profitable if rivals are rendered competitively ineffective quickly which mitigates the upfront loss associated with the strategy. To this end, the ACCC is considering the role of economies of scale in the supply of container transport services and the extent to which a loss of scale will render rival container transport providers less competitively effective. Market feedback to date indicates that there are economies of scale associated with container transport services, and that Silk benefits from a national presence. Accordingly, a reduction in rivals' container transport volumes is likely to substantially raise the cost for rivals and undermine their competitive position.
- 95. The ACCC will also have regard to barriers to entry and expansion in the supply of container transport services. If barriers to entry and expansion are low, a below-cost pricing strategy is less likely to be profitable because new entrants will be drawn to the subsequent higher prices that DP World Australia would charge, preventing it from recovering the profit lost through below-cost pricing.
- 96. The ACCC is also considering whether the existence of vertically integrated stevedore and container transport providers further raises real and/or perceived barriers to entry for non-integrated container transport providers.
- 97. The ACCC is considering the impact that a below-cost conditional discount strategy may have on increasing DP World Australia's quayside stevedore container throughput due to cargo owners and freight forwarders switching shipping lines to receive a discounted effective bundle (see para 82b). DP World Australia may be further incentivised to offer below-cost conditional discounts if it appears that the strategy materially increases quayside container stevedore throughput.
- 98. The ACCC is considering whether DP World Australia may be constrained from offering discounted effective bundles to cargo owners due to potential straining of DP World Australia's existing relationships with freight forwarders, who may act as both key customers and potential competitors in the container supply chain. For example, freight forwarders may have arrangements in which a cargo owners' container is handled by DP World's terminals and a rival transport provider. A discounted effective bundle offered by DP World Australia could trigger the cargo owner to break the arrangement organised by the

freight forwarder and switch to Silk. This could risk the freight forwarder losing the cargo owner as a customer and in retaliation, the freight forwarder could pre-emptively move some or all of its containers away from DP World Australia.

99. The ACCC's consideration of this theory is not wholly limited to the analysis above. The ACCC in its assessment may have further regard to other related container services that DP World Australia may include as part of a below-cost conditional discount. It may also have regard to the impact on rival stevedores.

Questions for market participants

The ACCC invites comments from market participants on its concerns regarding the potential for below-cost conditional discounts. In particular, market participants may wish to comment on the following:

- The barriers to expansion and/or entry in the supply of container transport services. In your response, detail barriers that are specific to any of the Relevant Ports and/or barriers to expanding from a statewide to nationwide supplier of container transport services.
- What factors influence customers when choosing between container transport providers? How relatively important is pricing among these factors?
- How, post-acquisition, DP World Australia would be able to practically offer a cargo owner or freight forwarder an effective bundle of container stevedoring and container transport services? In your response, please provide any examples and respond to the following:
 - Would such a bundle be commercially feasible to offer cargo owners and freight forwarders?
 - Would such an offer be able to be accepted by cargo owners and freight forwarders?
- How easy is it for customers to switch between container transport providers? What contractual or operational barriers exist?
- How would rival transport providers respond if DP World Australia significantly lowered its prices for an extended period?
- How would rival container stevedores respond if DP World Australia significantly lowered its prices for an extended period?
- Would customers have sufficient bargaining power to prevent DP World Australia from raising prices if Silk's rivals exited the supply of container transport services?
- How difficult or costly would it be for a transport provider to exit and later re-enter the market if forced out?

Issue that may raise concerns: Access to commercially sensitive information

Silk's access to DP World Australia's commercially sensitive information

100. Post-acquisition Silk may have access to commercially sensitive information about its rivals. Market feedback indicates that DP World Australia, as a container stevedore, may be able to identify the party relating to a container shipment (i.e. a freight forwarder or cargo owner) and have access to information regarding the routes and delivery schedules of container transport providers.
101. If the proposed acquisition gives a combined DP World Australia and Silk access to commercially sensitive information about rival container transport providers services and customers, this information could be used by the merged entity to target Silk's rivals' clients. For example, DP World Australia and Silk could use intelligence about a freight forwarder or cargo owner's container volumes and transport requirements to undercut a rival's service offering (i.e. by undercutting Silk's rival's offering proactively, without necessarily being invited to tender for the cargo owner's/freight forwarder's contract).
102. Alternatively, access to competitors' commercially sensitive information may facilitate coordination (including tacit coordination) between Silk and its rivals, by increasing the visibility of competitors' actions and responses to Silk's conduct.
103. The ACCC is continuing to consider the nature of the information to be held by DP World Australia including whether DP World Australia and Silk could identify the cargo owner based on the container information it receives.

DP World's access to Silk's commercially sensitive information

104. Market feedback suggests that Silk has valuable information about a freight forwarder or cargo owner's volume and prices.
105. DPW, which is the indirect parent entity of DP World Australia, may have the ability and incentive to access Silk's commercially sensitive information to advantage its freight forwarding business. If the proposed acquisition gives DPW access to commercially sensitive information about its rivals, the ACCC is concerned that DPW could use these insights to adversely impact competition. For example, DPW could use information on Silk's clients pricing and volumes to undercut rival freight forwarders' service offerings.
106. Market feedback indicates that freight forwarders are hesitant to use container transport providers that are integrated with rival freight forwarders, due to commercially sensitive information that could be passed onto competitors.
107. However, the ACCC acknowledges that DPW is an indirect parent entity of DP World Australia, which would be the ultimate owner of Silk pursuant to the proposed acquisition. As discussed above, DPW is not the sole owner of DP World Australia, although it has the majority voting rights. To the extent that

there is commercial separation between DPW and DP World Australia, the ACCC considers that this may limit the flow of information between Silk and DPW.

Questions for market participants

The ACCC invites comments from market participants on its concerns in relation to commercially sensitive information that DP World Australia and/or Silk would have access to as a result of the proposed acquisition, and the competitive impact of any such strategy. In particular market participants may wish to comment on the following:

DP World Australia's information

- The type of information that is generally regarded as commercially sensitive information that is not otherwise available in the public domain that Silk, post-acquisition, would have access to.
- How the information identified above would likely benefit Silk's container transport business if it was available to Silk?
- Identify the likely impact on rivals to Silk as a consequence of its access to such information.

Silk's information

- The type of information that is generally regarded as commercially sensitive information that is not otherwise available in the public domain that DPW, post-acquisition, would have access to.
- How the information identified above would likely benefit DPW's freight forwarding business?
- Identify the likely impact on rivals to DPW as a consequence of its access to such information.

ACCC's future steps

108. As noted above, the ACCC invites submissions from market participants on each of the issues identified in this Statement of Issues and on any other issue that may be relevant to the ACCC's assessment of this matter. Submissions should be emailed to mergers@accc.gov.au by no later than 27 March 2025.
109. The ACCC will finalise its view on this matter after it considers submissions invited by this Statement of Issues.
110. The ACCC intends to publicly announce its final view by 5 June 2025. However the anticipated timeline may change in line with the *Informal Merger Review Process Guidelines*. A Public Competition Assessment explaining the ACCC's final view may be published following the ACCC's public announcement.